

Court No. - 21

Case :- WRIT - C No. - 15865 of 2023

Petitioner :- Rajeev Mohan Saxena

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Dewarshi Kumar Rai, Siya Ram Yadav

Counsel for Respondent :- CSC, Baleshwar Chaturvedi

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Prashant Kumar, J.

1. The petitioner has challenged the recovery citation dated 16.09.2022 issued by respondent No. 2 for recovery of a sum of Rs. 2,54,185/- from the petitioner in a case of theft of electricity.
2. The brief holder of learned counsel for the respondent Electricity Department states that the impugned recovery has been withdrawn. It is submitted that a fresh notice of provisional assessment has been issued to the petitioner fixing 08.06.2023 and final assessment order will be passed after hearing the petitioner.
3. Accordingly, the petition is disposed of with liberty to the respondents to pass fresh order strictly in accordance with the procedure prescribed under the U.P. Electricity Supply Code, 2005.

(Prashant Kumar, J.) (Manoj Kumar Gupta, J.)

Order Date :- 10.5.2023

Jaswant